

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #02	CCRB Case #: 201412123	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 12/01/2014 10:30 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 6/1/2016	Precinct: 43		
Date/Time CV Reported Wed, 12/03/2014 3:27 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 12/03/2014 3:27 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ignacio Delrio	21908	952661	HBXQIRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Gary Tagliaferri	536	955555	HBXQIRT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ignacio Delrio	Abuse: PO Ignacio Delrio questioned § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Ignacio Delrio	Off. Language: PO Ignacio Delrio made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientations.	B . Unsubstantiated
C . POM Ignacio Delrio	Discourtesy: PO Ignacio Delrio spoke rudely to § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated

Case Summary

On December 3, 2014, § 87(2)(b) filed the following complaint on behalf of himself and his boyfriend, § 87(2)(b) by leaving a message on the CCRB Call Processing System.

On December 1, 2014, at approximately 10:30 p.m., § 87(2)(b) and § 87(2)(b) were walking to their residence at § 87(2)(b) in the Soundview Housing complex in the Bronx. A marked RMP stopped nearby. The operator was PO Ignacio Delrio of the Housing Bureau Bronx/Queens Impact Response Team and the recorder was PO Gary Tagliaferri of the same command. PO Delrio called out to the two men and allegedly asked them where they were coming from and if they lived in the complex (**Allegation A**). PO Delrio then allegedly said to the two men, “Fuck you guys, you fucking faggots. You can suck my dick” (**Allegations B and C**). The officers drove away.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) declined the option of mediation. On March 10, 2015, the investigator requested a copy of any Notice of Claim filed with the City of New York by either § 87(2)(b) or § 87(2)(b) (encl. 12). No response has been received as of the date of this report. [§ 87(2)(b)] [§§

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b) first CCRB complaint (encl. 1b-1c).
- PO Delrio has been a member of the NYPD for two years and has no previous CCRB allegations (encl. 1).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) and § 87(2)(b) both identified the driver of the RMP as the subject officer. § 87(2)(b) recounted the RMP number as 9049. PO Delrio and PO Tagliaferri were assigned to RMP #9049 on the date in question (encl.). PO Delrio admitted to being the operator that day and to calling out to § 87(2)(b) and § 87(2)(b) § 87(2)(g)

- **Allegation A—Abuse of Authority: PO Ignacio Delrio questioned § 87(2)(b) and § 87(2)(b)**

§ 87(2)(b) recounted that he and § 87(2)(b) were walking on a pedestrian path when they noticed two RMPs driving behind them (encl. 3b). They stepped aside and the first RMP stopped near them. PO Delrio allegedly said, "Where are you guys coming from?" § 87(2)(b) said they were coming from work and § 87(2)(b) said they were coming from the bus stop. They kept walking and PO Delrio asked if they lived there. § 87(2)(b) said they did and pointed to their building. PO Delrio repeated the question and § 87(2)(b) again said that they did live there.

§ 87(2)(b) § 87(2)(g) stated that PO Delrio instructed them to approach the RMP and that they approached until they were approximately six feet from the vehicle (encl. 4).

PO Delrio explained that he and PO Tagliaferri were on meal when they heard a report of a robbery on the radio. They decided to assist the PSA8 units assigned to the job in canvassing for the suspect. PO Delrio recounted driving slowly through the housing complex after receiving a description of a Hispanic man wearing a black jacket, a black hoodie, and black sneakers (encl. 5g). He saw § 87(2)(b) and § 87(2)(b) could see that they were Hispanic, and saw that one was wearing a black jacket. He suspected that the man wearing the black jacket might be the

suspect so he called out, “How you doing sir? Where you guys coming from?” The man in the black jacket turned around and PO Delrio saw that he was wearing a red hoodie, so he concluded that he was not the suspect and did not question him further. PO Tagliaferri generally corroborated PO Delrio’s account of his exchange with § 87(2)(b) and § 87(2)(b) (encl. 6f).

An officer is permitted to make a request for information from a civilian, and can ask questions pertaining to the civilian’s identity, destination, and reason for being in a given area, provided the officer has an objective, credible reason for doing so. People v. Hollman, 79 N.Y.2d 181 (1992) (encl. 0a-0h). Such an encounter, though it may be unsettling, must be general and nonthreatening. While the line between a request for information and a common-law inquiry can be difficult to discern, a common-law inquiry generally involves extended and accusatory questioning that would lead a reasonable person to believe that he or she was suspected of criminal conduct.

§ 87(2)(g)

Therefore it is recommended that **Allegation A** be closed as **exonerated**.

- **Allegation B—Offensive Language: PO Ignacio Delrio made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientations.**
- **Allegation C—Discourtesy: PO Ignacio Delrio spoke rudely to § 87(2)(b) and § 87(2)(b)**

§ 87(2)(b) first alleged that PO Delrio yelled to him and § 87(2)(b) “Fuck you, you fucking faggot. Suck my dick.” He later quoted PO Delrio as having said, “Fuck you guys, you fucking faggots. You can suck my dick.” § 87(2)(b) alleged that PO Delrio said, “Fuck you faggots. Suck my dick.”

PO Delrio denied making any statements to the men other than, “How you doing sir? Where you guys coming from?” He denied using any profanity and denied telling the men to suck his dick. He recounted that after getting the men’s attention, one turned and immediately shouted, “Y’all don’t got nothing better to do than fucking be harassing people? What the fuck is this?” PO Tagliaferri similarly denied hearing PO Delrio make the alleged statements or use any profanity. He recounted that one of the men shouted, “Don’t you have anything fucking better to do than harass us?”

§ 87(2)(g)

Therefore it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Pod: 2

Investigator: _____ Daniel Giansante _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date